



Hawkins Cookers Limited

New Udyog Mandir II, Pitamber Lane, Mahim, P.O. Box 6481, Mumbai 400 016

Corporate Identity Number: L28997MH1959PLC011304 • Phone: (91 22) 2444 0807 • Fax: (91 22) 2444 9152

Email: conserve@hawkinscookers.com • Website: www.hawkinscookers.com

October 1, 2024

Dear Sirs,

Appointment as a Hawkins Authorised Retailer

1. We are pleased to appoint you as a Hawkins Authorised Retailer on the terms and conditions mentioned herein below with effect from October 1, 2024, and upto September 30, 2026, unless extended in writing by mutual consent or determined as provided herein. This letter determines, by mutual consent, previous letters of appointment, if any.
2. You shall not stock or sell or deal in any spurious products, spurious parts, and/or any product or parts imitating our Product(s) using any of our brand names, in an unauthorized manner, or in any way claim or suggest or pass off such spurious products, spurious parts, and/or any product or parts imitating our Product(s) as having been manufactured and/or supplied by us, when such is not the case. You shall not add or modify anything to our Product(s), including the label and packaging thereof, which is not supplied by us nor shall you take away or wrongfully remove, damage, or destroy anything supplied by us in the original package. You shall not apply spurious price stickers or other false information to our Product(s), nor shall you modify or alter the specifications on the label, including the MRP, in any manner whatsoever and howsoever. You shall not disparage or tarnish the reputation of our Product(s) either directly or indirectly. You shall not stock or sell any products that falsely apply any of our brand names or infringe any of our trademark, copyright, design or patent rights or apply logos/labels/packages that imitate(s), wholly or partially, any of our logos/labels/packages.
3. You shall not in any way use the trade name(s), logo(s), trademark(s), design(s), copyright(s) and/or any other intellectual property belonging to Hawkins Cookers Limited without our written permission in advance.
4. You shall provide all relevant and correct information to consumers regarding our products and parts and use your best efforts to promote their sale for which purpose you shall appropriately purchase, regularly stock and display our products during the duration of this appointment. You shall use the goodwill of and/or demand for our products in the market exclusively for the purpose of promoting the sales of our products. You shall not use the goodwill of and/or demand for our products directly or indirectly, to promote the sales of the products which are not supplied by us. You shall not without our prior written consent make any promises or guarantees about our products beyond those contained in the specifications supplied by us.
5. You shall permanently and prominently display our products and parts.
6. You shall prominently display the merchandising, shop boards and shop advertising material supplied by us from time to time in the position and in the manner required by us during the term of this appointment.

7. You shall ensure the correct depiction of our products online and offline and protect the Consumer from being misled. You shall also ensure that any of our products purchased by you from us or elsewhere are not offered or sold through any online or e-commerce platform, without compliance with all applicable provisions of law and our written brand authorisation. If you wish to sell our products online, you must sign a supplementary Hawkins Online Sales Agreement and abide by the terms and conditions contained therein.
8. You shall ensure that you are not involved in driving existing competitors out of the market, or foreclosing competition, using unfair means including “loss-leading”. You shall also ensure that you are not an accessory, directly or indirectly, in an abuse of dominant position, through unfair, manipulative, or unlawful prices in purchase or sale of our products including predatory pricing in any form, not limited to bundled services alone. The question whether such abuse has taken place or not shall be decided by Hawkins Cookers Limited after taking into account your submissions and such decision shall be final and binding on you.
9. You undertake that during the term of this agreement and thereafter, you shall keep this agreement and all matters/data related to Hawkins business confidential, which comes to you whether in print or any digital/ electronic form, whether or not marked “Confidential”.
10. You shall not collect goods supplied by us from transporters without making required payments to us against invoice(s) raised on you and you shall give us a proper written receipt for all goods received by you.
11. You shall deposit Rs.2,500 (Rupees Two Thousand Five Hundred only) with us which shall earn interest at the lowest rate payable by us to our bankers. The interest on your deposit at a rate determined by Hawkins shall be paid annually by credit note during the duration of this appointment.
12. We shall provide you with free merchandising material from time to time which you must display. We shall contribute 75% of the cost of co-operative publicity as may be mutually agreed and you shall contribute 25%.
13. For due and satisfactory performance of all aspects of this appointment, you shall be eligible for Purchase/Display Incentive(s) as per the plan(s) issued by us from time to time. The amount payable to you shall be paid through credit notes. If in our opinion, your performance is not satisfactory, or you breach any of your obligations under this agreement, including any applicable laws, rules, regulations, and our policies and code of conduct, any Purchase/Display Incentive(s) that may be payable to you shall be liable to be fully or partially forfeited, apart from any other legally permissible action(s), as may be decided by us, in this regard.
14. All credit notes mentioned hereinabove are adjustable against your future purchases of our products or against any debit notes issued by us or against unpaid overdues.
15. If in our judgement there is a breach of any of the clause(s) 2, 3 or 4:
- a) this appointment shall be terminated forthwith notwithstanding any other clauses in this letter;
 - b) your deposit under clause 11 shall be forfeited;
 - c) you shall not be entitled to any benefits that may have accrued to you under this appointment and/or any of our sales promotion and/or other schemes including participation in our Dealer Conferences; and
 - d) we shall have the right to take all necessary legal steps including the making of public announcements to protect the goodwill of our brand and the consumers’ interest, if required.
16. The relationship between us will be that of Principal to Principal, and not that of Principal and Agent. You shall act in the best interests of the Company and shall not cause any prejudice to the Company in any manner. You shall not represent yourself as an agent of the Company for any purpose, to any third-party. Any waiver from any requirements under this agreement shall be in writing. You shall indemnify, keep indemnified and keep Hawkins Cookers harmless from and against any and/or all claims, losses, damages, expenses or liabilities of any nature whatsoever arising out of your business operations as a Hawkins Authorised Retailer.
17. Notwithstanding any other clause in this letter, this appointment may be terminated at any time without assigning any reason by either party giving 30 days notice in writing.

- a) You shall immediately cease to use and hand over to our duly authorised representative, the Hawkins Authorised Retailer Certificate and all merchandising, display, advertising and service materials, shopboards, manuals, records and any other material(s) that may have been provided by us to you, including the copies thereof.
- b) You shall settle your accounts with us within 30 days from the date of such termination.
- c) You shall not misrepresent to consumers or any other party that you are continuing as a Hawkins Authorised Retailer.
- d) We may at our discretion make public announcements in the press and/or other media regarding your ceasing to be Hawkins Authorised Retailer.
- e) We shall not be liable for any damages or loss incurred by you for any reason whatsoever during or after the duration of this appointment.

20. This appointment shall be governed by the laws of India. Any difference, dispute, claim and matter arising out of this appointment (hereinafter referred to as “Dispute”) shall be referred to Arbitration as per Arbitration and Conciliation Act, 1996. The place of arbitration shall be Mumbai. Any Dispute outside the scope of Arbitration shall be subject to the exclusive jurisdiction of the courts in Mumbai.

Yours faithfully,
for Hawkins Cookers Limited,

Designation: _____

Firm's Name & Address _____ Dealer's Name: _____
 _____ Dealer's Signature: _____
 _____ Designation: _____
 _____ Date: _____

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